

The defendant pleaded release from the said J. S. with whom the first covenant was made, and it was dated after the commencement of this suit: and thereupon

The plaintiff demurred.

And all the Court agreed, that the covenant goes with the land, and that the assignee at the common law, or at leastwise by the statute, shall have the benefit thereof.

Secondly, they held, that although the breach was in the time of the assignee, yet if the release had been by the covenantee (who is a party to the deed, and from whom the plaintiff derives) before any breach, or before the suit commenced, it had been a good bar to the assignee from bringing this writ of covenant. But the breach of the covenant being in the time of the assignee, for not levying a fine, and the action brought by him, and so attached in his person, the covenantee cannot release this action wherein the assignee is interested. Whereupon rule was given, that judgment should be entered for the plaintiff, unless cause was shewn to the contrary by such a day (a).

CASE 5. HARRISON'S CASE.

To disturb Courts of Justice by threatening or reproachful words to any Judge sitting therein, is a high misprision, for which the offender may be indicted, fined, exposed, and imprisoned. *Ante*, 175.

S. C. Hutton, 131. 1 Sid. 271. Cro. Car. 175. 503. Poph. 135.

1 Hawk. P. C. 88. 354. 4 Bl. Com. 126.

Thomas Harrison was indicted, for that on the 4 May, 14 Car. 1. while the Courts of Common Pleas, King's Bench, and Chancery, were sitting, he rushed to the Bar of the Common Pleas, and in disturbance of the justices and of the Court and ad-[504]-ministration of justice, and against the King and His Regal Majesty, *palam et publice et malitiosè* intending to draw Justice Hutton, one of the Justices of the Common Pleas, into displeasure of the King and of other his subjects, and to bring him into danger of his life, and forfeiture of his life and goods, spake these words of him the said Justice Hutton, in the presence and audience of the justices there sitting: "I accuse Mr. Justice Hutton of high treason."

The defendant pleaded "not guilty," and by a jury of knights and esquires was found "guilty," he confessing (a) that he spake those words purposely and openly, because Judge Hutton, in his argument in the Exchequer-Chamber, maintained, that the King might not charge his subjects to find ships, and that therein he denied his supremacy; and by this means he stirred up the subjects to sedition against the King.

The judgment was, that he should pay a fine to the King of five thousand pounds, be imprisoned during the King's pleasure, have a paper upon his head shewing his offence, and go therewith to all the Courts of Westminster, and make his submission in every Court in Westminster-Hall and in the Exchequer, for it is an offence to every Court (b).

Keeling, Clerk of the Crown, informed the Court, that imprisonment during the King's pleasure is usually entered, and not imprisonment during life, except where there is an awarding of forfeiture of lands during life.

(a) Judgment was given for the defendant. *Post*, 505.

(a) 5 Co. 125. b. Fort. 101.

(b) Mr. Justice Hutton brought an action against him in the King's Bench for defamation; and recovered 10,000l. damages.—*Hut. Rep.* 131.